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Ponca Tribe of Nebraska

November 21, 2025

The Honorable Debbie-Anne A. Reese
Secretary, Federal Energy Regulatory Commission
888 First Street NE
Washington, D.C. 20426

RE: Motion to Extend Deadlines and Initiate Tribal Consultation: In the Matter of: Proceeding to Consider Department of Energy Proposed Advanced Notice of Proposed Rulemaking on Large Load Transmission Interconnection ([Docket No. RM26-4-000](#))

I. Introduction

Pursuant to Rule 2008 of the Commission's Rules of Practice and Procedure, 18 C.F.R. § 385.2008, the National Congress of American Indians (NCAI) respectfully submits this motion to extend the deadlines for comments and reply comments in the above-captioned proceeding and to formally request government-to-government consultation with Tribal Nations as required by federal law and Commission policy.

Founded in 1944, NCAI is the oldest, largest, and most representative organization of American Indian and Alaska Native Tribal governments, and our policy positions are directed by consensus from our membership of nearly 300 Tribal Nations. NCAI acknowledges the Department's stated intent to ensure that new technologies are developed and implemented in a manner consistent with its trust and treaty responsibilities. We also appreciate that the Order recognizes Tribal Nations as essential partners in this work.

NCAI acknowledges the Commission's "Notice Granting Extension of Time" issued on November 7, 2025. This minimal 7-day extension (to November 21) is wholly insufficient. It fails to address the unique procedural and substantive deficiencies the Department of Energy's [Advance Notice of Proposed Rulemaking](#) ("ANOPR") raises for Tribal Nations, which are sovereign governments, not mere stakeholders.

We therefore reiterate our motion for a meaningful extension of the comment period and, critically, our formal request for the Commission to initiate immediate, government-to-government consultation as required by federal law and the trust responsibility. See, e.g., *United States v. Kagama*, 118 U.S. 375 (1886); *Seminole Nation v. United States*, 316 U.S. 286 (1942).

II. The Commission's Process Remains Fundamentally Deficient

A. The 7-Day Extension Is Procedurally Insufficient

The Commission's November 7 Order implicitly acknowledges that the original 16-day comment period was unworkable. Yet the minimal 7-day extension — granted only in response to state organizations citing "technical and legal complexity" — remains profoundly insufficient. It completely disregards the far more complex and time-consuming *sovereign-to-sovereign consultation* required for Tribal Nations. Tribal governments must conduct internal governmental review, legal analysis, and leadership deliberation before submitting an official position. Compressing this process into a total of 24 days renders meaningful participation effectively impossible and violates the spirit of the Administrative Procedure Act ("APA"), 5 U.S.C. § 553.

B. The Failure to Consult Has Not Been Cured

Critically, the Commission's November 7 Order *also* fails to mention Tribal Nations or cure the proceeding's underlying failure to consult. Neither the Department of Energy's (DOE) proposed ANOPR nor any subsequent Commission notice acknowledges the existence of Tribal Nations, Tribal sovereignty, treaty rights, or the federal trust responsibility.

Because this proceeding will have "substantial direct effects on one or more Tribal nations," it triggers explicit consultation duties under Executive Order 13175, "Consultation and Coordination with Indian Tribal Governments," 65 Fed. Reg. 67249 (Nov. 9, 2000). It also violates the Commission's own binding policy, *Policy Statement on Consultation with Indian Tribes in Commission Proceedings*, 104 Federal Energy Regulatory Commission (FERC) 61,108 (2003). Furthermore, the ANOPR fails to analyze its impacts under foundational statutes governing Tribal lands, such as the Alaska Native Claims Settlement Act ("ANCSA"), 43 U.S.C. § 1601 *et seq.* Proceeding without consultation violates these binding federal obligations.

III. The ANOPR Has Profound, Unexamined Tribal Implications

This rulemaking is not a narrow technical exercise. The 14 principles for reform proposed in the DOE's ANOPR represent a potential jurisdictional and economic restructuring of the U.S. energy system, with direct and disproportionate consequences for the 574 federally recognized Tribal Nations.

A. Implications for Tribal Sovereignty and Land Use

The ANOPR's proposed principles aim to accelerate infrastructure, such as data centers and expanded transmission corridors ("network upgrades"). These linear projects will invariably intersect with Tribal lands, sacred sites, water rights, cultural resources, and federally protected, off-reservation treaty rights. The federal government has a duty to protect these treaty-reserved rights. See, e.g., *Minnesota v. Mille Lacs Band of Chippewa Indians*, 526 U.S. 172 (1999).

The proposal is silent on how its new, expedited processes will comply with mandatory federal consultation requirements, such as Section 106 of the National Historic Preservation Act ("NHPA"), 54 U.S.C. § 306108, or the National Environmental Policy Act ("NEPA"), 42 U.S.C. § 4321 *et seq.*

B. Implications for Tribal Economic Self-Determination

The ANOPR's Principle "Cost Responsibility," which allocates 100% of network upgrade costs to the load, effectively privileges large corporate developers while undermining Tribal Nations' ability to pursue

energy or industrial projects. This approach contradicts the federal government's trust responsibility to promote Tribal self-sufficiency. See, e.g., Indian Reorganization Act of 1934, 25 U.S.C. § 5301 *et seq.*, and the Indian Energy Policy Reform Act of 2005.

This failure is acute for the 229 Tribal Nations in Alaska, as the ANOPR fails to account for the unique economic and land-owning structure of ANCSA corporations or its effect on isolated Tribal microgrids. Moreover, the proposal creates a direct conflict with established law. The ANOPR's Principle "Option to Build" on Tribal trust lands requires federal rights-of-way, which are subject to Tribal consent under 25 U.S.C. §§ 323–328. The ANOPR fails to address this fundamental legal requirement.

Furthermore, consultation mechanisms must recognize the diversity of Tribal governance systems, including Pueblos, intertribal organizations, Alaska Native villages, and ANCSA corporations. A one-size-fits-all approach will not fulfill federal obligations.

C. Jurisdictional Conflicts

By framing the ANOPR's jurisdictional discussion solely around federal and state roles, the proposal disregards Tribal Nations as the third sovereign within the United States. This omission overlooks the well-established legal principle that Tribal Nations retain inherent sovereignty over their lands. See, e.g., *McGirt v. Oklahoma*, 140 S. Ct. 2452 (2020). Excluding Tribal governments from jurisdictional considerations risks renewed conflicts over permitting, resource management, and taxation on Tribal lands: conflicts that could be prevented through meaningful consultation.

IV. Formal Requests for Corrective Action

NCAI acknowledges the 7-day extension granted on November 7, 2025. As this is insufficient, NCAI respectfully demands the following:

1. Grant a *further* extension of the comment and reply comment deadlines to a date no less than 120 days from the original October 28 notice. This is the minimum time necessary for sovereign Tribal governments to respond meaningfully.
2. Initiate formal, government-to-government consultation with Tribal Nations in compliance with Executive Order 13175 and the Commission's 2003 Tribal Consultation Policy. This consultation must occur *prior* to the close of any new comment period.
3. Acknowledge and incorporate Tribal Nations as sovereign governments in all subsequent Commission notices and rulemaking documents related to this docket.

V. Pathways for Compliance and Collaboration

NCAI recommends that the Commission establish a structured consultation process consistent with Executive Order 13175, including:

- Regional listening sessions co-hosted with Tribal governments across the four FERC regions;
- A Tribal Advisory Technical Working Group to review implications for transmission planning and permitting; and
- Written summaries and follow-up reports shared with all Tribal Nations prior to the issuance of any Notice of Proposed Rulemaking (NOPR).

These measures would operationalize consultation in a way that is transparent, efficient, and inclusive of the full diversity of Tribal governance structures.

VI. Conclusion

Meaningful consultation and adequate review are not procedural preferences; they are legal and moral imperatives grounded in the U.S. Constitution (Art. I, § 8, cl. 3; Art. VI, cl. 2), treaties, and the federal trust responsibility.

For these reasons, NCAI respectfully requests that the Commission grant a meaningful extension to at least February 25, 2026, and initiate formal Tribal consultation prior to proceeding further in this docket.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Larry Wright, Jr.", with a stylized flourish at the end.

Larry Wright, Jr.
Executive Director
National Congress of American Indians

cc:

The Honorable Laura V. Swett, Chairman
The Honorable David Rosner, Commissioner
The Honorable Lindsay S. See, Commissioner
The Honorable Judy W. Chang, Commissioner
The Honorable David A. LaCerte, Commissioner